

IN THE _____ COURT OF _____, ARKANSAS
VETERANS TREATMENT SPECIALTY COURT DIVISION

STATE OF ARKANSAS PLAINTIFF

vs. Case No. _____

(First, Middle, and Last name) DEFENDANT

**PETITION TO DISMISS AND SEAL OFFENSE IN VETERANS
TREATMENT SPECIALTY COURT PROCEEDING PURSUANT TO
A.C.A. §16-101-106 AND A.C.A. §16-90-1401 {AND TO SEAL
SEPARATE PREVIOUS OFFENSE FROM ANOTHER COURT}**

Comes the Defendant and for his/her petition to dismiss and seal the
record states:

1. The defendant was arrested on the _____ day of _____,
_____, and charged with the offense(s) of:

in violation of A.C.A. § _____.

2. With the Defendant's consent and without entering a judgment of guilt,
the Court deferred further proceedings and placed the Defendant on
probation/court supervision.

IN THE District Court COURT OF Example County, ARKANSAS
VETERANS TREATMENT SPECIALTY COURT DIVISION

STATE OF ARKANSAS PLAINTIFF

vs. Case No. 24-CR-001234

Jordan Avery Reyes
(First, Middle, and Last name) DEFENDANT

**PETITION TO DISMISS AND SEAL OFFENSE IN VETERANS
TREATMENT SPECIALTY COURT PROCEEDING PURSUANT TO
A.C.A. §16-101-106 AND A.C.A. §16-90-1401 {AND TO SEAL
SEPARATE PREVIOUS OFFENSE FROM ANOTHER COURT}**

Comes the Defendant and for his/her petition to dismiss and seal the
record states:

1. The defendant was arrested on the _____ day of _____,
_____, and charged with the offense(s) of:

in violation of A.C.A. § _____.

2. With the Defendant's consent and without entering a judgment of guilt,
the Court deferred further proceedings and placed the Defendant on
probation/court supervision.

3. The terms and conditions of Defendant's probation/court supervision required the successful completion of an approved veteran's treatment specialty court program.
4. On _____ the Defendant successfully completed the veteran's treatment specialty court program.
5. The Court has received a recommendation from the prosecuting attorney for the dismissal of the veteran's treatment specialty court program and the sealing of the record.
6. ☐ The Defendant has no pending felony charge in any state or federal court; or
☐ The Defendant has one or more pending felony charge in state or federal court and the status of that/those charges is/are as follows:

7. If applicable, on the _____ day of _____, _____, in case number(s) _____ in _____ County _____ Court the Defendant previously plead guilty or nolo contendere to or was found guilty of

_____ in violation of A.C.A. § _____.
8. The offense(s) listed in Paragraph 7 above, if any, is/are a target offense as defined in A.C.A. § 16-93-1202(10)(A)(i).
9. The offense(s) listed in Paragraph 7 above, if any, is/are not:
 - i. Residential burglary; A.C.A. § 5-39-201(a)
 - ii. Commercial burglary; A.C.A. § 5-39-201(b)
 - iii. Breaking or entering; or A.C.A. § 5-39-202
 - iv. Driving or boating while intoxicated. A.C.A. § 5-65-103

3. The terms and conditions of Defendant's probation/court supervision required the successful completion of an approved veteran's treatment specialty court program.
4. On _____ the Defendant successfully completed the veteran's treatment specialty court program.
5. The Court has received a recommendation from the prosecuting attorney for the dismissal of the veteran's treatment specialty court program and the sealing of the record.
6. ☐ The Defendant has no pending felony charge in any state or federal court; or
☐ The Defendant has one or more pending felony charge in state or federal court and the status of that/those charges is/are as follows:

7. If applicable, on the _____ day of _____, _____, in case number(s) _____ in Example County County _____ Court the Defendant previously plead guilty or nolo contendere to or was found guilty of

_____ in violation of A.C.A. § _____.
8. The offense(s) listed in Paragraph 7 above, if any, is/are a target offense as defined in A.C.A. § 16-93-1202(10)(A)(i).
9. The offense(s) listed in Paragraph 7 above, if any, is/are not:
 - i. Residential burglary; A.C.A. § 5-39-201(a)
 - ii. Commercial burglary; A.C.A. § 5-39-201(b)
 - iii. Breaking or entering; or A.C.A. § 5-39-202
 - iv. Driving or boating while intoxicated. A.C.A. § 5-65-103

10. The Defendant has satisfactorily fulfilled the terms and conditions of probation/court supervision or has been released by the court prior to that time.

11. As evidenced by the signature below, the above information is true and correct to the best of Defendant’s knowledge.

WHEREFORE, the Defendant, _____, prays this Court enter an Order Dismissing and Sealing the above-referenced case pursuant to A.C.A. §16-98-303.

FURTHER, if applicable, the Defendant, _____, prays this Court enter an Order Sealing case number(s)

_____ from _____

County _____ Court pursuant to A.C.A. §16-101-106(b)(1)

Defendant’s Signature

10. The Defendant has satisfactorily fulfilled the terms and conditions of probation/court supervision or has been released by the court prior to that time.

11. As evidenced by the signature below, the above information is true and correct to the best of Defendant’s knowledge.

WHEREFORE, the Defendant, _____, prays this Court enter an Order Dismissing and Sealing the above-referenced case pursuant to A.C.A. §16-98-303.

FURTHER, if applicable, the Defendant, _____, prays this Court enter an Order Sealing case number(s)

_____ from _____

County [Example County](#) Court pursuant to A.C.A. §16-101-106(b)(1)

Defendant’s Signature

VERIFICATION

STATE OF ARKANSAS
COUNTY OF _____

Comes the Defendant/Petitioner, _____, under oath and states
that the foregoing Petition is true and correct to the best of my knowledge
and belief.

Petitioner

Subscribed and sworn to before me on this _____,
day of _____, 20____.

(Seal) _____
Notary Public

My Commission expires: _____

**THE FOLLOWING INFORMATION IS REQUIRED FOR PROPER
IDENTIFICATION OF THE DEFENDANT IN THE STATE AND
NATIONAL RECORD SYSTEMS**

Race _____	Arrest Tracking Number _____
Sex _____	SID No. _____
DOB _____	FBI No. (If known) _____

VERIFICATION

STATE OF ARKANSAS
COUNTY OF Example County _____

Comes the Defendant/Petitioner, _____, under oath and states
that the foregoing Petition is true and correct to the best of my knowledge
and belief.

Petitioner

Subscribed and sworn to before me on this _____,
day of _____, 20____.

(Seal) _____
Notary Public

My Commission expires: _____

**THE FOLLOWING INFORMATION IS REQUIRED FOR PROPER
IDENTIFICATION OF THE DEFENDANT IN THE STATE AND
NATIONAL RECORD SYSTEMS**

Race _____	Arrest Tracking Number _____
Sex _____	SID No. _____
DOB _____	FBI No. (If known) _____

Certificate of Service

I, _____, do hereby certify that a true and correct copy of the foregoing Petition has been provided to either the Prosecuting Attorney for the County in which the Petition has been filed or to the City Attorney depending on which office prosecuted the case and the arresting agency by placing a copy of this Petition in the United States mail, postage prepaid, to said office or by hand delivering a copy to said office.

Defendant or Defendant's Attorney

Date

Certificate of Service

I, _____, do hereby certify that a true and correct copy of the foregoing Petition has been provided to either the Prosecuting Attorney for the County in which the Petition has been filed or to the City Attorney depending on which office prosecuted the case and the arresting agency by placing a copy of this Petition in the United States mail, postage prepaid, to said office or by hand delivering a copy to said office.

Defendant or Defendant's Attorney

Date